

SUPERIOR COURT OF JUSTICE – ONTARIO

RE: Eleanor Denise Baines, Plaintiff

AND:

Navdeep Singh Hehar and Manmohan S. Hehar, Defendants

BEFORE: C. Horkins J.

COUNSEL: Eleanor Denise Baines, in person

David Silverstone and Alex Lempp, for the defendants

HEARD: May 12, 2010

ENDORSEMENT RE REQUEST FOR ACCOMODATION

[1] The plaintiff commenced this action as a result of a motor vehicle accident that occurred on January 26, 2000. She alleges that she was injured in this accident and seeks damages from the defendants.

[2] On Monday, May 10 2010, I was assigned to be the trial judge for the trial of the plaintiff's action set to start the next day. I was given the trial record and a document titled "Proposed Accommodation Plan" ("the Plan") for the plaintiff.

[3] The Plan is a two page document and was prepared on May 5, 2010. It is based on conversations between the plaintiff and two accessibility officers that occurred on April 21 and 30, 2010. The Plan proposes accommodations for the plaintiff's "disability-related needs" for the trial scheduled to start on "May 10, 2010". The proposed accommodations are "subject to the approval of the trial judge". The Plan describes four "Disability-Related Barriers" and for each barrier a "Proposed Accommodation" is set out.

[4] The four barriers and the proposed accommodation described in the Plan are as follows:

1. The Disability-Related Barrier

- o Difficulty with information processing and multi-tasking, exacerbated by stress and fatigue, is likely to lead to difficulty performing the full range of

cognitive tasks required of a self-represented litigant. Assistance with some tasks will lighten the cognitive load and help with effective functioning.

Proposed accommodation – A Support Person

A support person, if available and with the judge's approval, will perform the following functions during the court proceedings, and for a short time before and/or after proceedings each day if necessary:

- o Orally pose questions to witnesses which have been written out in advance by Ms. Baines.
- o Check with Ms. Baines as to whether any follow-up questions are needed, and if so, obtain further written questions from Ms. Baines to be posed in court.
- o When Ms. Baines requests, comment to her privately about whether a question she has written out makes linguistic sense. However, the support person will not make comments on the advisability, appropriateness, relevance or any aspect of the question other than whether it makes linguistic sense. Nor will the support person draft or frame questions for Ms. Baines or on her behalf
- o Where Ms. Baines requests, verify whether she has understood something just said in court, by having Ms. Baines state her understanding of it and clarifying as necessary. However, this will only be done where:
 - the judge does not explain the matter, and
 - the matter to be verified does not involve explanation of legal concepts or issues.

Ms. Baines cannot rely on the accuracy of the support person's verification, since the person will be a lay person making best efforts to understand and verify the matters under discussion.

2. The Disability-Related Barrier

- o Difficulty with information processing and multitasking, exacerbated by stress and fatigue, will make it difficult or impossible for Ms. Baines to take notes of the proceedings while attending to other duties as a self-represented litigant.

Proposed accommodation – A Professional Note-taker

- A professional note-taker will take computerized notes of the main points under discussion (not verbatim notes) during proceedings. These notes will be corrected by the note-taker as needed and provided to Ms. Baines after each day's session. This may be done via printed copy or e-mail as agreed. If time permits, notes from each morning session will be provided to Ms. Baines before the afternoon session in printed form.
- The note-taker will sit at the plaintiff's counsel table, at the judge's discretion. If Ms. Baines asks, the note-taker will check sections of her notes during the proceeding and privately read them back to Ms. Baines or verify whether the notes match Ms. Baines' stated recollection. The notes are intended to supplement, rather than replace, Ms. Baines' own recollection. Since the notes will not be verbatim, Ms. Baines cannot assume that the notes will capture the same points that she herself would have captured, or in the same way as she herself would have captured them.

3. The Disability-Related Barrier

- o Cognitive demands as a self-represented litigant may cause excessive fatigue and related symptoms (e.g., loss of concentration, difficulty processing information), especially later in each day and week

Proposed accommodation – Shorter Hearing Days

- Shorter hearing days, if required, at the judge's discretion.

4. The Disability-Related Barrier

- o Cognitive demands are likely to result in fatigue, and a need for a quiet place to rest and focus.

Proposed accommodation – A quiet room in the court house for the plaintiff's use

[Emphasis in the original Plan]

[5] On Monday May 10th shortly after being advised that I was the trial judge, the trial coordinator told me that the accessibility officer wanted to know if I would approve the Plan. When I reviewed the Plan it was obvious that I could not consider the request for accommodation without the benefit of further information. Aside from the Plan itself, I had no information about the request for accommodation. I asked the trial coordinator to tell the accessibility officer that I would deal with the matter in court the next day. I later learned that the accessibility officer sent the plaintiff an e-mail informing her that I had refused her request for accommodation. This was not correct.

[6] On May 11, 2010, the plaintiff and the defence counsel attended in court to start the trial. I told the plaintiff that contrary to the e-mail she received from the accessibility officer, I had not refused her request for accommodation. I explained that before the trial could start, her request for accommodation had to be considered.

[7] I invited the plaintiff to testify under oath and provide me with any evidence she wanted me to consider. I explained that I needed evidence about the disability in order to consider the proposed accommodations.

[8] The plaintiff confirmed that the disability described in the Plan is the very disability (or injury) that the plaintiff claims was caused by the motor vehicle accident.

[9] The defendants dispute the plaintiff's claim that she was injured in the motor vehicle accident. It is their position that the plaintiff's credibility will be a significant factor in the jury trial. They oppose the request to have a "support person" assist the plaintiff as set out in the Plan. In their view a "support person" is not necessary and if allowed it would be prejudicial to the defence since it would lend support to the very issue that must be decided. The defence does not dispute the other accommodations that the Plan proposes.

[10] Given that the request for accommodation deals with the very injuries alleged in the action, I allowed the defence an opportunity to question the plaintiff during the *voir dire* and provide any additional medical evidence relevant to the request for accommodation. I cautioned the defence against cross-examining the plaintiff and turning the *voir dire* into an adversarial process.

[11] I proceeded to conduct the *voir dire*. The plaintiff testified and I was given various medical documents. After considering this evidence I advised the plaintiff that I would not approve the presence of a support person (with reasons to follow). I reviewed the daily court schedule I intended to follow and the plaintiff confirmed that this would be satisfactory. I told her that if she required a break I would accommodate the request if reasonable.

[12] The accessibility officers have a note-taker available to take notes for the plaintiff during the trial and a room in the court house has been designated for her use during the trial.

[13] I approve the designation of a room for the plaintiff's use. Lawyers on occasion have rooms available for their use during a trial to meet with witnesses and the same type of room should be offered to the plaintiff.

[14] The Plan states that the note-taker is provided at the expense of the Ministry of the Attorney General. While the defence objects to a support person assisting the plaintiff, they did not object to the other accommodations in the Plan. Given the lack of medical evidence to justify these accommodations and the evidence gathered during the *voir dire* (reviewed below), I question why the Ministry should be funding the cost of a note-taker, particularly when the alleged disability is the very issue that is disputed in this action. However, since the defence did not object to the note-taker I reluctantly approved it.

[15] However, I do not approve the note-taker's role described in the Plan. The Plan proposes that the note-taker will record the "main points under discussion". This assumes that the note-taker will be able to appreciate when a "main" point is under discussion. The note-taker has no legal training and knows nothing about the action. It is unrealistic for the accessibility officers to expect that a note-taker will be able to decide when a "main" point is under discussion and only record such points. The note-taker will record notes as best she or he can. The notes will not be verbatim. All other direction in the Plan for the note-taker is satisfactory.

[16] My reasons for not allowing a support person follow. First and foremost there is no evidence that the plaintiff requires this accommodation. Secondly, the role of the support person envisioned in the Plan covers tasks performed by a party's lawyer. A support person cannot be allowed to perform the function of a lawyer on behalf of the plaintiff.

[17] The accessibility officers who prepared the Plan relied solely on what the plaintiff told them about the disability. They were not given any medical information. Although they knew that the trial was about to start, there was no effort by the plaintiff or the accessibility officers to bring this request to the attention of the Justice Moore, the judge managing the long civil trial list. He met with the parties on April 23, 2010. Further, they did not bring the request to the attention of the pre-trial judge who met with the parties on May 6, 2010.

[18] While I appreciate that the accommodations are subject to the approval of the trial judge, the creation of such a Plan in a vacuum is not helpful. In this case it led to several recommendations that are ill-informed, unnecessary and simply unworkable. Furthermore, this Plan unfairly raised the expectations of the plaintiff.

[19] The Plan proposes that the support person will perform functions during court and before and after court each day if necessary. The accessibility officers have not been able to locate someone to fulfill the "support person" function. It is not clear what type of training or skills they expected the support person to have.

[20] According to the Plan the support person will not have legal training and is not permitted to provide "legal advice or representation" to the plaintiff. Despite this limitation, the role of the support person in essence covers tasks that a lawyer would do in court.

[21] The Plan states that the plaintiff will prepare the questions and the support person will question the witnesses. When this is done, the support person will check with the plaintiff to see if any further questions need to be asked. This is the role of a lawyer in court. Lawyers ask questions and may before concluding, discuss with the client if any other questions need to be asked.

[22] The Plan also proposes that the support person will help the plaintiff make sure that her questions make "linguistic sense" but will not comment on the "advisability, appropriateness or relevance" of any question. In my view, this wrongly assumes that the plaintiff and the support person can draw a bright line between questions that do require legal training and those that do not. How would the support person know if the question makes linguistic sense without

understanding the legal issues? What if the question does not make sense or the support person does not understand the question? This could easily lead to a discussion that would focus on the legal issues of the case.

[23] Lastly, the Plan proposes that the plaintiff can ask the support person to “verify whether she has understood something just said in court”. The support person will only assist if the judge does not explain the matter and the matter does not involve an “explanation of legal concepts or issues”. It is difficult to imagine how a support person can verify that the plaintiff understands without being drawn into the legal issues of the case. Further, how will the plaintiff and the support person know if the verification involves “legal concepts or issues”? It is unrealistic to expect that someone with no legal training can draw this distinction.

[24] In essence, the Plan proposes that a person with no legal training or authority from the Law Society of Ontario, perform tasks that lawyers are trained and licensed to carry out on behalf of the plaintiff. In my view, this contravenes s. 26.1 of the *Law Society Act*, R.S.O. 1990, c. L.8 and for this reason alone the accommodation cannot be approved.

[25] This action was commenced in January 2002. The plaintiff was represented by counsel until June 2008. Since then she has represented herself.

[26] As a result of the motor vehicle accident, the plaintiff says that she suffered a frontal lobe brain injury and has cognitive difficulties. For example, the plaintiff says she has difficulty multi-tasking and sometimes she has difficulty speaking. The symptoms are worse if she is tired.

[27] As a self-represented litigant, the plaintiff has attended two pre-trials and a case conference. The first pre-trial was held on March 31, 2009 before Justice Pollak. The plaintiff prepared her own pre-trial memorandum. The plaintiff then attended a case conference before Justice Moore on April 23, 2010 and on May 6, 2010 she attended a second pre-trial before Justice Wilkins. At the second pre-trial, the plaintiff negotiated a settlement of her accident benefit claim.

[28] Justice Moore gave the plaintiff a detailed document describing the trial process and how to present evidence. This is a document prepared for litigants who are representing themselves. The document also describes hearsay evidence, business records, spontaneous statements, exhibits, real evidence, best evidence, statements made by the opposing party, how to question witnesses and deal with objections, the role of reply evidence, the opening statements of counsel, the use of expert witnesses, closing submissions and costs. To prepare for this trial, the plaintiff read this document.

[29] The plaintiff has also been reading a book titled *Ontario Courtroom Procedure* by Justice Donald S. Ferguson. The plaintiff located the book in the Great Library at Osgoode Hall and has been reading the book getting ready for trial.

[30] Three judges spent time with the plaintiff in pre-trials. They had access to medical reports about the plaintiff and had an opportunity to observe her in the pre-trial process. None of these judges expressed any concern regarding the plaintiff's ability to represent herself at trial.

[31] The plaintiff lives an independent life. At the time of the motor vehicle accident she was a student at York University. She continued to attend classes after the motor vehicle accident for a period of time. She lives on her own and takes care of herself. For example, she does her own housekeeping, shopping and banking. On occasion she takes care of her grandchildren.

[32] Without the help of a lawyer, the plaintiff applied for ODSP and CPP disability benefits. When benefits were denied she appealed and handled this process on her own.

[33] At the time of the accident, the plaintiff was a student at York University. In the spring of 1999 (before the motor vehicle accident), the plaintiff failed a course. The plaintiff tried to drop the course to avoid having a failed grade on her transcript, but she missed the deadline.

[34] In an effort to remove this grade from her transcript, the plaintiff petitioned the University and then appealed to the University Senate Appeals Committee for relief. I reviewed copies of her letters to the University dated February 26 and August 24, 2000 confirming these steps. The letters, written after the motor vehicle accident, are lengthy and articulate. The plaintiff managed this appeal process on her own.

[35] The plaintiff's testimony during the *voir dire* was clear and easy to understand. While I observed the usual difficulty that any self-represented party experiences in court, I observed no difficulty with the plaintiff's ability to understand the questions asked and articulate her answers. When clarification was requested it was provided. I confirmed on numerous occasions that she understood what was said.

[36] After the pre-trial, the plaintiff drafted an amended statement of claim. She presented it to me and requested an amendment. Her request to amend her pleading was handled without any difficulty.

[37] The plaintiff and defence provided me with several medical reports. I do not propose to review all the medical evidence. None of the reports address the plaintiff's ability to represent herself at trial or the proposed accommodations in the Plan. Most of the medical reports that the plaintiff relies upon are inadmissible. It is clear from the defence reports that the issue of the alleged brain injury will be vigorously contested.

[38] The plaintiff's medical evidence is dated and the only recent report is from Dr. Diane Stoler who practices in the United States. Pursuant to the *Evidence Act*, this report is not admissible at trial.

[39] Dr. Mamelak is the plaintiff's psychiatrist. His most recent report is dated March 18, 2002. He relies on the results of SPECT scans to support his opinion that the plaintiff suffered a head injury. The reliability of the SPECT scan as a tool for diagnosing injury to the brain will be

a significant issue during the trial. The defence challenges the extent of Dr. Mamelak's expertise, his reliance on the SPECT scans and argues that he is adversarial and lacks objectivity. Whether he will be allowed to testify and if so about what issues is a question for the trial judge to determine.

[40] The plaintiff also relies on Dr. Ogilvie-Harris. He is an orthopaedic surgeon who examined the plaintiff on February 18, 2005 at the request of her lawyer. He concluded that the plaintiff suffered soft tissue injuries to the cervical and lumbar spine. There is nothing in this report that suggests the need for a support person.

[41] The defence points to the numerous negative test results. For example, the MRI and CAT scans were normal. Dr. Upton, a neurologist retained by the defence, states that SPECT scans are not reliable and he describes the plaintiff's SPECT scan results as "bizarre". He sees no reason why the plaintiff should have any limitations in her ability to work, go to school or enjoy recreational activities.

[42] In summary, the evidence does not support the need for a support person. The alleged injury that has triggered the accommodation request is vigorously contested and the presence of a support person may add credibility to the plaintiff's claim that she has suffered a head injury. In these circumstances, it would be prejudicial to the defence to have a support person in court assisting the plaintiff. In any event, the function of the support person covers tasks performed by a lawyer. A person with no legal training cannot be allowed to assume this role. For all of these reasons, I refuse the plaintiff's request to have a support person assist her during the trial.

[43] It is agreed that this decision will bind the trial judge. The trial of the action has now been adjourned to February 28, 2011.

C. Horkins J.

DATE: May 20, 2010